

Ashish Sood vs Of on 4 January, 2024

Author: Virender Singh

Bench: Virender Singh

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA.

Cr.M.P(M) No. 2765 of 2023

Decided on: 4th January, 2024

Ashish Sood

...

Versus

of

State of H.P.

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Coram

The Hon'ble Mr. Justice Virender Singh, Judge.

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Whether approved for reporting?1

For the applicant:

Mr. Ajay Kochhar, Senior
Advocate assisted by Mr.
Anubhav Chopra, Advocate.

For the respondent:

Mr. Tejasvi Sharma, Addl. A.G
with Ms. Leena Guleria, Dy. A.G
assisted by ASI Chander

Mohan, Women Police Station,
Nahan, District Sirmaur, H.P.

Virender Singh, Judge (Oral)

Applicant-Ashish Sood has filed the present application, under Section 438 of the Code of Criminal Procedure (hereinafter referred to as 'Cr.PC'), apprehending his arrest in case FIR No. 17 of 2023, dated 26.10.2023, registered with Women Police Station Nahan, District Whether the reporters of Local Papers may be allowed to see the judgment? Yes.

Sirmaur, H.P., under Sections 498-A, 406 read with Section 34 of the Indian Penal Code (hereinafter referred to as 'IPC').

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2. By way of application under Section 438 Cr.P.C., the applicant has sought indulgence of this Court to direct the Police/Investigating Officer to release him on bail, in the of event of his arrest, in the above noted case.

3. According to the applicant, he belongs to a respectable family having deep roots in the society. According rt to him, no recovery is to be effected from him.

4. Apart from this, number of undertakings have also been given on behalf of the applicant, for which, he is ready to abide by, in case, any direction is issued to the IO/police under Section 438 Cr.P.C.

5. On the basis of above facts, he has prayed that relief sought for be granted to him.

6. On the basis of above stand, the police was directed to file the status report in this case. The police has submitted the status report, disclosing therein, that on 26.10.2023, complainant Surabhi Sood had filed a complaint before the police, in which, initially, parties were called for counseling, but, the said process could not succeed.

Thereafter, the complainant has lodged the FIR, disclosing therein, the facts that the complainant is the legally wedded wife of Ashish Sood (applicant). The marriage between the .

complainant and Ashish Sood (applicant) was solemnized on 19.02.2017, as per Hindu rites and customs at Ror Bhawan, Manimajra, Chandigarh (UT). Out of this wedlock, there is no of issue born between the parties.

6.1. As per contents of the complaint, Ashish Sood (applicant) is a Web Designer professional and used to work rt in Chandigarh. When, the complainant had met Ashish Sood (applicant), she was working as Clinical psychologist (National Health Mission) since 2013 and is posted in Nahan, District Sirmaur. The complainant and Ashish Sood (applicant) had initially made it clear that the complainant could not leave Nahan because of her job and had agreed to stay at a convenient location which is not very far away from Nahan and would also suit Ashish Sood (applicant). The complainant had accordingly planned to stay in Mohali, Punjab. The complainant and Ashish Sood (applicant) had stayed in Mohali, in a rented accommodation. The complainant used to visit Ashish Sood (applicant) on week ends and gazetted holidays. The complainant also used to visit the matrimonial home at Village Dheera Palampur, District Kangra, HP.

6.2. As per the complainant, accused person No. 2 and 3 (applicants) used to taunt her on the inefficiency of the .

dowry. Ashish Sood (applicant) used to remain silent and did not stop his mother and father from taunting. It was shocking for the complainant that after few weeks, Ashish Sood of (applicant) also started taunting the complainant for bringing insufficient dowry.

6.3. It has also been mentioned in the complaint that rt the behaviour of Ashish Sood (applicant) remained cordial for about six months after the marriage and thereafter, Ashish Sood (applicant) started quarrelling with the complainant without any reasonable cause and started treating her with cruelty both mentally and physically. Ashish Sood (applicant) by taking chance, started insulting the complainant in the presence of friends and relatives without any cause.

6.4. That Ashish Sood (applicant) being a man suffering with several anxiety issues and due to this, he used to get offensive and rude towards the complainant, whenever the complainant and Ashish Sood (applicant) used to meet at weekends or gazetted holidays. Even, Ashish Sood (applicant) has assaulted the complainant physically and mentally on some occasions, so the complainant was under constant pressure mentally and physically. Ashish Sood (applicant) always come to house in the late hours and since 2 years is .

living completely away from the complainant. The days when they lived together, before 2020, Ashish Sood (applicant) under the anxiety issues, forced the complainant to prepare of fresh food for him in the mid night and also beat her. Ashish Sood (applicant) always used to doubt the complainant and level false allegations on her. However, despite all the odds, rt the complainant, on her part, always tried to face the abrupt and antagonistic behaviour of Ashish Sood (applicant) with the hope that with the passage of time, good sense will prevail to him and he will realize his responsibilities towards the complainant. There is no physical relation of husband and wife between the complainant and Ashish Sood (applicant), for which, the complainant is not responsible. Ashish Sood (applicant) has deserted the complainant physically without any reasonable cause since the past 2 years.

6.5. As per the complainant, the accused persons always taunted the complainant for bringing insufficient dowry. The accused persons have always levelled the allegations against the

complainant. The accused persons also told the complainant that her parents have not taught the complainant to make food etc., hence, Ashish Sood (applicant), in connivance with his parents i.e. accused .

person No.2 and 3 always treated the complainant with cruelty.

6.6. It has been mentioned in the complaint that on 2nd of July, 2017, the father of the complainant, who was Head of the Department (Radiology), posted at IGMCH, Shimla, H.P passed away. The accused persons were aware of the fact that the mother of the complainant has got some monetary benefits from the Government of Himachal Pradesh, in lieu of the services of the father of the complainant. The greed of the accused persons got even higher and they started pressurizing the complainant and her mother and brother for dowry demand. Under the pressure of the accused persons the complainant and her mother Nisha Sood were forced to purchase a flat in July 2018 in Drishti Homes Kharar. The mother of complainant Smt. Nisha Sood, was forced to pay Rs. 15,00,000/- (Fifteen lakhs Only) towards the purchase of the flat. The amount was paid from the account of Nisha Sood vide two different transactions. The accused persons had extracted Rs.15,00,000/- from the mother of the complainant as dowry. The mother of the complainant being herself a widow and a pensioner was forced and harassed to pay an amount of Rs. 15,00,000/- under the constant .

pressure of the accused persons. The accused persons are stated to be greedy persons, who always persisted the complainant to demand everything from her mother.

of 6.7. As per the complainant, after purchasing the aforesaid flat, the accused persons started pressurizing the complainant and her mother that Ashish Sood (applicant) also requires an office for him at Chandigarh. He had made an illegal demand for establishing office at Chandigarh. On refusal to give an amount, Ashish Sood (applicant) refused to co-habit and stay with the complainant and moved back to his village At Dheera, Palampur, Himachal Pradesh. The complainant is deprived to have day to day basic necessities and she was asked to pay for it. Even if the complainant intends to cook something for herself, Ashish Sood (applicant) used to demand money for that also. The complainant always tried to induce Ashish Sood (applicant) that his behavior is not appropriate for their matrimonial ties, but, Ashish Sood (applicant) was not ready to listen to the complainant.

6.8. Ashish Sood (applicant) is stated to be an irresponsible person, who has never bothered to look after the welfare of the complainant. The accused persons have also kept and hold back the entire 'stridhan' belonging to .

complainant with them. After one week of the marriage the accused persons had kept a Dham at Village Dheera, Palampur, District Kangra, Himachal Pradesh. The parents of the complainant had gifted more jewellery at that time. There was no arrangement of Photographer at that function, as the accused persons had cunningly avoided the photographs.

rt 6.9. The accused person had initially opened the locker in his own name, but, the complainant then had persuaded Ashish Sood (applicant) to take the locker in joint name as the entire stri dhan was to be kept in that locker. The complainant had kept the keys with her, but, at the time of quarrel Ashish Sood (applicant) took the keys along with himself. The keys of the joint locker are in the possession of Ashish Sood (applicant) and despite repeated requests, he refuses to return the keys of that locker. The entire jewellery, in the form of Gold and silver, given at the time of marriage, to the complainant, by her parents are kept in the joint locker No. 106 in HDFC Bank, SCO 382, Sector 37D, Chandigarh.

The accused persons have continuously refused to return the Stri Dhan to the complainant. The complainant has been continuously harassed by the accused persons by refusing to return her Stri Dhan. The demand for Rs. 15,00,000/-, as .

mentioned above, had not been reported anywhere, due to the reason that the mother and the brother of the complainant wanted to settle the life of the complainant happily. But due of to the continuous desertion for the past 2 years, the complainant has been left with no other option, but, to file the complaint. rt

7. On the basis of above facts, a prayer has been made to take action against the accused persons.

8. During investigation, the police has collected the documentary proof with regard to the marriage of complainant with the son of the applicants, documents pertaining to the flat at Sanate Majra, SAS Nagar Mohali (Punjab), documents pertaining to the online transfer of the amount, photographs of the marriage etc. The parents of Ashish Sood (applicant) were directed to join the investigation.

9. After perusing the said status report, a direction was given to the police to release him on bail, in the event of his arrest.

10. In the supplementary status report, police has submitted that it transpired during the investigation that .

after 20 days of marriage, Ashish Sood (applicant) had obtained a locker No. 106 in HDFC Bank Branch SCO 382 in his name, as well as, in the name of complainant. The said of locker was operated for the last time on 12.09.2022. The said locker was found to be empty. In this regard, according to the status report, Ashish Sood (applicant) could not give a rt satisfactory answer. According to the police, it has been found that Ashish Sood (applicant) has removed the 'Stridhan' of complainant out of the locker and concealed the same at his native place at Dheera or invested the said amount in his business. The police has also apprehended the involvement of the applicants. The police has also mentioned the fact that the recovery of 'Stridhan' is yet to be effected.

11. In the status report filed today, similar facts have been mentioned.

12. Heard.

13. The applicant and the complainant are husband and wife and they have solemnized the marriage on 19.02.2017. Now, compelled by the circumstances, they are litigating with each other, by way of present case, as well as, the cases under the Protection of Women from Domestic Violence Act.

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14. The locker was opened by Ashish Sood (applicant) jointly in his name, as well as, in the name of the complainant. In the status report, police has allegedly levelled the vague allegations by mentioning the fact that the articles were removed by Ashish Sood (applicant) from the locker and concealed at his native place at Dheera or the same has been invested in the business.

15. In such situation, when there are general allegations against the applicant, this Court is of the view that the police has not made out a case for custodial interrogation of the applicant.

16. Considering all these facts, this Court is of the opinion that the relief, which has been granted to the applicants, vide order, dated 31st October, 2023, is liable to be confirmed. Consequently, interim order, dated 31st October, 2023, is made absolute. Therefore, it is ordered that the applicant be released on bail, in the event of his arrest, in case FIR No. 17 of 2023, dated 26.10.2023, registered with Women Police Station Nahan, District Sirmaur, H.P., under Sections 498-A, 406 read with Section 34 IPC, on his furnishing personal bond, to the tune of 50,000/- with one

surety of the like amount, to the satisfaction of the Investigating Officer. The bail is granted, subject to the following conditions:

a) That the applicant will join the investigation of the case, as and when, called for, by the Investigating Officer, in accordance with law;

b) That the applicant will not leave India, without prior permission of the Court;

or

c) That the applicant will not, directly or indirectly, make any inducement, threat or promise to any person, acquainted with the facts of the case, so as to dissuade him/her from disclosing such facts to the Investigating Officer or the Court; and

d) That the applicant shall regularly attend the trial Court on each and every date of hearing and if prevented by any reason to do so seek exemption from appearance by filing appropriate application;

17. Any of the observations, made hereinabove, shall not be taken as an expression of opinion, on the merits of the case, as these observations, are confined, only, to the disposal of the present bail application.

18. The applicant is directed to move regular bail application, when charge sheet will be filed in the competent Court of law.

19. It is made clear that the respondent-State is at liberty to move an appropriate application, in case, any of the .

bail conditions, is found violated by any of the applicants.

January 04, 2024
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(Virender Singh)
Judge

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